

Amendment No. 1 to SB0343

Crowe
Signature of Sponsor

AMEND Senate Bill No. 343*

House Bill No. 398

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 3, Part 5, is amended by adding the following as a new section:

(a) A paramedic, licensed pursuant to § 68-140-306, may make an actual determination and pronouncement of death if the paramedic has successfully completed training in the determination and pronouncement of death and the paramedic has attempted to resuscitate the person in accordance with standards established by the emergency medical services board.

(b) This section does not permit a paramedic to make the actual determination and pronouncement of death of a patient who is in a hospital when the apparent death occurs.

(c) This section does not preclude a physician licensed pursuant to title 63, chapter 6 or 9, from directing a paramedic to cease resuscitative efforts.

SECTION 2. Tennessee Code Annotated, Title 68, Chapter 140, Part 3, is amended by adding the following as a new section:

(a) Each paramedic shall complete a course of instruction on making an actual determination and pronouncement of death.

(b) The board shall not issue a paramedic license to an applicant from another state if the applicant does not provide proof of the successful completion of a training course on the actual determination and pronouncement of death.

SECTION 3. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2027, the public welfare requiring it.